

ALITO, J., dissenting

that Louisiana and Oregon flouted for ignominious reasons certainly provides fuel for the argument that the rule announced today meets the test. And in Oregon, the State most severely impacted by today's decision, watershed status may not matter since the State Supreme Court has reserved decision on whether state law gives prisoners a greater opportunity to invoke new precedents in state collateral proceedings. See *Verduzco v. State*, 357 Ore. 553, 574, 355 P. 3d 902, 914 (2015).³¹

Whatever the ultimate resolution of the retroactivity question, the reliance here is not only massive; it is concrete. Cf. *Dickerson v. United States*, 530 U. S. 428, 443 (2000) (reliance weighed heavily in favor of precedent simply because the warnings in *Miranda v. Arizona*, 384 U. S. 436, had become “part of our national culture”). In my view, it weighs decisively against overruling *Apodaca*.

In reaching this conclusion, I do not disregard the interests of petitioner and others who were convicted by a less-than-unanimous vote. It is not accurate to imply that these defendants would have been spared conviction if unanimity had been required. In many cases, if a unanimous vote had been needed, the jury would have continued to deliberate and the one or two holdouts might well have ultimately voted to convict.³² This is almost certainly the situation in Oregon, where it is estimated that as many as two-thirds of all criminal trials have ended with a non-unanimous verdict. See Brief for State of Oregon as *Amicus Curiae* 12. It is

³¹ Under our case law, a State must give retroactive effect to any constitutional decision that is retroactive under the standard in *Teague v. Lane*, 489 U. S. 288 (1989), but it may adopt a broader retroactivity rule. *Montgomery v. Louisiana*, 577 U. S. 190, 199 (2016); *Danforth v. Minnesota*, 552 U. S. 264, 275 (2008).

³² Studies show that when a supermajority votes for a verdict near the beginning of deliberations, a unanimous verdict is usually reached. See generally Devine, Clayton, Dunford, Seying, & Pryce, *Jury Decision Making: 45 Years of Empirical Research on Deliberating Groups*, 7 *Psychology, Pub. Pol'y & L.* 622, 690–707 (2001).